



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35601306

Date: JAN. 16, 2025

Appeal of Nebraska Service Center Decision

Form I-131, Application for Travel Document

The Applicant, a native and citizen of Denmark, seeks a reentry permit. *See* Immigration and Nationality Act (the Act) section 223, 8 U.S.C. § 1203. A reentry permit, obtained prior to departing on temporary travel abroad, allows a lawful permanent resident or conditional resident to apply for admission to the United States upon return, and if that absence lasts more than one year, without the necessity of obtaining a returning resident visa.

The Director of the Nebraska Service Center denied the application, concluding that the record did not establish that the Applicant was physically present in the United States when he applied for the reentry permit. Specifically, the Director determined that the Applicant traveled abroad on December 26, 2023, and had not returned to the United States; therefore, the Applicant was not physically present in the United States when he filed his Form I-131, Application for Travel Document (Form I-131), on June 18, 2024. The Director cited to the regulation at 8 C.F.R. § 103.2(a)(7)(i). The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

On appeal, the Applicant contends that he was in the United States when he first submitted the Form I-131 in December 2023, but that he was outside the United States when the submission was rejected because the Applicant had not included the correct filing fee, as required. 8 C.F.R. § 103.2(a)(7)(ii). The Applicant asks that his initial December 2023 attempted filing date be retained; however, a benefit request that is rejected for lack of a correct fee will not retain a filing date. *Id.*

Although we acknowledge the Applicant's claim to have attempted to file his Form I-131 prior to his travel outside the United States on December 26, 2023, he was outside the United States when the application was properly filed on June 18, 2024, and neither the Act nor the regulations provide for an exception to the pre-departure filing requirement in 8 C.F.R. § 223.2(b)(1). Accordingly, the

Applicant is ineligible for a reentry permit because he has not shown that he filed his application while in the United States.¹

ORDER: The appeal is dismissed.

¹ Although he cannot obtain a reentry permit through this application, the Applicant is not precluded from filing a new application when he is physically present in the United States in lawful permanent resident status.